

Sixty-ninth
Legislative Assembly
of North Dakota

FIRST ENGROSSMENT

ENGROSSED SENATE BILL NO. 2006

Introduced by

Appropriations Committee

1 A BILL for an Act to provide an appropriation for defraying the expenses of the North Dakota
2 aeronautics commission; and to provide an exemption.

3 BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

4 **SECTION 1. APPROPRIATION.** The funds provided in this section, or so much of the funds
5 as may be necessary, are appropriated out of any moneys in the general fund in the state
6 treasury, not otherwise appropriated, and from other funds derived from special funds and
7 federal funds, to the North Dakota aeronautics commission for the purpose of defraying the
8 expenses of the North Dakota aeronautics commission, for the biennium beginning July 1,
9 2025, and ending June 30, 2027, as follows:

		Adjustments or	
	<u>Base Level</u>	<u>Enhancements</u>	<u>Appropriation</u>
12 Salaries and wages	\$1,789,878	\$132,794	\$1,922,672
13 New and vacant FTE pool	0	20,495	20,495
14 Operating expenses	3,285,000	(119)	3,284,881
15 Grants	<u>27,100,000</u>	<u>123,775,000</u>	<u>150,875,000</u>
16 Total all funds	\$32,174,878	\$123,928,170	\$156,103,048
17 Less other funds	<u>31,699,878</u>	<u>123,928,170</u>	<u>155,628,048</u>
18 Total general fund	\$475,000	\$0	\$475,000
19 Full-time equivalent positions	7.00	0.00	7.00

20 **SECTION 2. ONE-TIME FUNDING - EFFECT ON BASE BUDGET - REPORT TO**

21 **SEVENTIETH LEGISLATIVE ASSEMBLY.** The following amounts reflect the one-time funding
22 items included in the appropriation in section 1 of this Act which are not included in the entity's

1 base budget for the 2027-29 biennium and which the entity shall report to the appropriations
2 committees of the seventieth legislative assembly regarding the use of this funding:

3 <u>One-Time Funding Description</u>	<u>Other Funds</u>
4 Generational airport projects	<u>\$120,000,000</u>
5 Total	\$120,000,000

6 **SECTION 3. NEW AND VACANT FTE POOL - LIMITATION - TRANSFER REQUEST.** The
7 North Dakota aeronautics commission may not spend funds appropriated in the new and vacant
8 FTE pool line item in section 1 of this Act, but may request the office of management and
9 budget to transfer funds from the new and vacant FTE pool line item to the salaries and wages
10 line item in accordance with the guidelines and reporting provisions included in House Bill
11 No. 1015, as approved by the sixty-ninth legislative assembly.

12 **SECTION 4. OTHER FUNDS - AIRPORT INFRASTRUCTURE FUND - AIRPORT**
13 **GRANTS - EXEMPTION.** The other funds appropriation in section 1 of this Act includes
14 \$20,000,000 from the airport infrastructure fund for the aeronautics commission to provide
15 grants to airports during the biennium beginning July 1, 2025, and ending June 30, 2027.
16 Section 54-44.1-11 does not apply to this funding, and any funds not spent by June 30, 2027,
17 must be continued into the biennium beginning July 1, 2027, and ending June 30, 2029, and
18 may be expended only for providing grants to airports.

19 **SECTION 5. OTHER FUNDS - STRATEGIC INVESTMENT AND IMPROVEMENTS FUND**
20 **- GENERATIONAL AIRPORT PROJECTS - EXEMPTION.** The other funds appropriation in
21 section 1 of this Act includes \$120,000,000 from the strategic investment and improvements
22 fund for generational airport projects during the biennium beginning July 1, 2025, and ending
23 June 30, 2027. Section 54-44.1-11 does not apply to this funding, and any funds not spent by
24 June 30, 2027, must be continued into the biennium beginning July 1, 2027, and ending
25 June 30, 2029, and may be expended only for generational airport projects.

26 **SECTION 6. EXEMPTION - INTERNATIONAL PEACE GARDEN AIRPORT**
27 **REHABILITATION PROJECT.** The sum of \$3,750,000 appropriated from federal funds and
28 special funds for the International Peace Garden airport pavement rehabilitation project in
29 section 1 of chapter 6 of the 2023 Session Laws is not subject to the provisions of section
30 54-44.1-11 and any unexpended funds from these appropriations are available and may be
31 expended during the biennium beginning July 1, 2025, and ending June 30, 2027.